General Terms and Conditions (GTC)

§1 Scope

These General Terms and Conditions (GTC) govern the contractual relationships between Heinz Personnel Solutions GmbH (the "Agency") and its clients (the "Companies") in connection with the search, selection, placement and integration of international nursing professionals.

In addition, these GTC apply accordingly to nursing professionals and other skilled workers whom we support, insofar as they are in a contractual relationship with the Agency (e.g. a placement agreement).

For clients, the GTC apply as business-related terms and conditions pursuant to § 14 of the German Civil Code (BGB). For nursing professionals, they apply only insofar as they concern transparency, protection and information obligations and do not conflict with consumer protection provisions.

§2 Subject matter of the contract

The subject matter of the contract is the search, selection, placement and integration of nursing professionals trained abroad for employment in Germany, as well as advice in this field. The Agency provides its services in accordance with the requirements of the "Faire Anwerbung Pflege Deutschland" quality seal and the applicable statutory provisions.

The following six guiding principles of the "Faire Anwerbung Pflege Deutschland" quality seal are a binding part of these General Terms and Conditions and of all contractual agreements with clients, nursing professionals and business partners.

1. Written form for verifiability
2. Free of charge placement process for nursing professionals
3. Limitation of the economic risk for nursing professionals
4. Transparency regarding structures, services and costs
5. Sustainability and participation
6. Overall responsibility along the service chain

Compliance with these guiding principles is mandatory for all contracting parties and is regularly reviewed by the Agency. Further information can also be found in our Declaration of Voluntary Commitment.

§3 Conclusion of contract & written form

The contract between the Agency and the client is concluded by signing an individual placement agreement. Amendments and supplements require written form.

§3.1 Voluntary acceptance of positions

The nursing professional is free to decline any proposed job offer without giving reasons. The nursing professional is at no time obliged to accept a job placed by the Agency. A refusal has no adverse effect on the further placement process or on cooperation with the Agency. Matching is carried out

exclusively on the basis of objective criteria (qualification, language level, professional experience) as well as the individual preferences of the nursing professional and the prospective employer.

§3.2 Retroactive submission of documents

The nursing professional is entitled to submit required documents (e.g. language certificates, recognition notices, official proofs) subsequently as well, insofar as this is necessary to continue or complete the procedure. A late submission does not lead to any disadvantage, provided the nursing professional did not intentionally cause the delay.

§4 Obligations of the Agency

The Agency undertakes to present the entire placement, recognition and integration process transparently in writing (Annex A). Matching is carried out according to objective criteria such as qualification, professional experience and the preferences of the nursing professional as well as the requirements of the client. Discrimination is excluded. The Agency ensures that all legal requirements, including compliance with the ILO core labour standards, the ILO guidelines for fair recruitment and the WHO Global Code of Practice, are met.

§5 Obligations of the client

The client undertakes to provide the Agency with all information and documents required for the placement in good time and in full, in particular job profiles, requirements and working conditions. The client supports the nursing professional in integrating into the company and in participating in language and professional training. The client further undertakes to maintain a structured professional and social integration management. This includes in particular:

- the systematic onboarding of the nursing professional based on a written onboarding concept
- the provision of qualified practical guidance throughout the entire recognition and onboarding phase
- measures for social integration in the team and the working environment (e.g. mentoring, sponsorships)
- active support for language acquisition alongside work, including time off, internal learning offers or cooperation with language course providers
- the appointment of a fixed contact person for professional and personal questions
- the documentation of all integration, language support and onboarding measures and making them available to the Agency on request

The client ensures that all of the aforementioned measures and instruments are available in writing and prepared in a manner appropriate for the recipients.

§ 6 Recognition procedure under the Nursing Professions Act and right to choose the compensation measure

(1) The Agency comprehensively informs all internationally trained nursing professionals about the recognition procedure in Germany in accordance with the statutory provisions of the Nursing Professions Act (PflBG).

(2) In particular, nursing professionals are informed in writing and in an understandable language about the compensation measures provided for in Germany, namely:

- the knowledge test pursuant to § 40 PflBG, and
- the adaptation course pursuant to § 40 PflBG.

(3) Pursuant to § 40 (3) sentence 3 PflBG, the nursing professional has a statutory right to choose freely between the compensation measures. The Agency ensures that this right of choice is communicated transparently and that no contractual or de facto restrictions exist.

(4) The information on the recognition procedure is provided to the nursing professional in writing and in a language they understand before the procedure begins.

(5) Should further compensation measures be listed in § 40 PflBG in Germany, these shall apply in addition to those mentioned above.

§7 Remuneration & payment terms

Remuneration is based on the individually agreed placement fee. All prices are exclusive of statutory value added tax. Unless otherwise agreed, invoices are due without deduction within 14 days of the invoice date.

§8 Cost transparency & Employer-Pays principle

No direct or indirect placement fees or costs are incurred by nursing professionals. The Employer-Pays principle is implemented consistently. Where a certain language level is a prerequisite for participation in the placement programme, the nursing professional may claim from the Agency the costs actually incurred for language acquisition – including course fees, examination fees and administrative costs – for up to one year retroactively from the signing of the German employment contract. Reimbursement is made no later than the start of work in Germany and exclusively upon presentation of suitable proof of payment.

§ 8.1 Prohibition of deposits, security payments and contractual penalties

Deposits, security payments, advance payments or other preventive payments may at no time be demanded from the nursing professional. Likewise, subsequent payments such as contractual penalties or fees of any kind are excluded.

This prohibition of payments applies to the entire service chain. The Agency contractually obligates all clients, business partners and subcontractors to comply with this rule. Any agreement that violates this prohibition of payments is invalid. No financial disadvantages whatsoever may arise for the nursing professional as a result.

§ 8.2 Reimbursement of self-paid language course costs

(1) By way of derogation from the prohibition of any shifting of costs onto the nursing professional under the Employer-Pays principle, the nursing professional has the right to be reimbursed for self-paid costs of language acquisition for up to one year retroactively from the signing of the German employment contract.

(2) Only the following are reimbursable:

- Fees for language courses in the country of origin

- Examination fees in the country of origin
- Administrative fees (translations, certifications, documents, visa, recognition of equivalence)

(3) Reimbursement is made subject to the presentation of suitable proof of payment, no later than the start of employment in Germany.

(4) This reimbursement obligation is an integral part of the Employer-Pays principle and applies to the entire service chain. Deviating agreements are invalid.

§9 Recognition procedure and right to choose the compensation measure

The Agency ensures that all internationally trained nursing professionals are comprehensively informed about the recognition procedure in Germany under the Nursing Professions Act. In particular, candidates are expressly informed of their statutory right under § 40 (3) sentence 3 PflBG to choose freely between the knowledge test and an adaptation course as the compensation measure. This information is provided in writing and in a language the nursing professional understands before the recognition procedure begins.

(1) Principle

Repayment obligations exist exclusively in accordance with the requirements of the "Faire Anwerbung Pflege Deutschland" quality seal and only for demonstrably incurred costs in the country of origin. Travel, visa, recognition or other costs incurred in Germany are expressly excluded, unless they are named under paragraph (2) (Permissible cost items).

(2) Permissible cost items

Repayments may comprise only the following costs:

1. fees actually incurred for language courses in the country of origin
2. examination fees in the country of origin
3. administrative fees (translations, certifications, documents, visa, recognition of equivalence)
4. where applicable, subsidies paid towards living expenses during the language course

Other costs are excluded.

(3) Maximum repayment amount

The maximum repayment amount is **EUR 2,000** and is communicated to the nursing professional prominently before the contract is concluded.

The maximum repayment amounts are based on the costs actually incurred for the individual items. These may not exceed the costs listed in the following table.

Cost item	Amount
Language course A1	€300.00
Language course A2	€300.00
Language course B1	€300.00
Language course B2	€300.00
Intensive language revision	€150.00
B2 examination fee	€150.00
B2 refresher course	€250.00
Translations	€200.00
Certification	€50.00
Maximum total	**€2,000.00**

(4) Exemption from repayment

There is no obligation to repay if the language course is discontinued:

- during the first 50 teaching units
- for health reasons (with medical certificate)
- in the event of pregnancy
- due to force majeure
- upon the death of a family member of the 1st or 2nd degree
- in the event of refusal of the visa
- upon termination of the procedure by Heinz Personnel Solutions, the employer or the partner agency
- in the event of a demonstrable violation of the quality seal by partner agencies, the placement agency or a partner
- if the nursing professional is not at fault

(5) Obligation to repay

An obligation to repay exists exclusively if the nursing professional discontinues the language course prematurely for reasons for which they are responsible. The repayment amount may relate only to the permissible costs named under paragraph (2).

(6) Repayment modalities

Repayments are made only upon presentation of suitable receipts. Payment in instalments is possible at any time at the request of the nursing professional. Furthermore, wage deductions are inadmissible.

(7) Duty of transparency

Before the contract is concluded, the Agency provides the nursing professional with a written, comprehensible overview, in a language the nursing professional understands, of all possible repayment costs and of the maximum repayment amount.

(8) Right of termination during the language course

The nursing professional has a monthly right of termination throughout the entire language course.

§10 Responsibility along the service chain

The Agency ensures compliance with these GTC and the RAL requirements along the entire service chain. Partner agencies and subcontractors are contractually obligated to comply with the same ethical, legal and quality standards. The Agency reviews compliance regularly and terminates cooperation in the event of violations.

General reservation of review

The Agency reserves a general right of review. This means that all clients, business partners and organisations involved are regularly reviewed for compliance with the GTC, the policy statement and the guiding principles of the "Faire Anwerbung Pflege Deutschland" quality seal.

Event-driven reservation of review

If there is a tip-off, a complaint or a suspicion of rule violations, an event-driven reservation of review applies. In this case, the Agency immediately reviews the affected processes or partners and initiates necessary measures.

§11 Provision of documents & language

All relevant documents, contracts and information are provided to nursing professionals in good time, in writing and in a language they understand.

§12 Complaints mechanism

The Agency provides a low-threshold complaints mechanism for nursing professionals and clients (e.g. e-mail address, online form, telephone contact). Submissions are acknowledged within five working days and processed within three weeks. Whistleblowers are protected from disadvantage or retaliation. Complaints and their handling are documented and used for internal audits.

§13 Data protection

Personal data is processed in accordance with the GDPR and the Agency's internal data protection concept. Data is processed only for specified purposes and with due regard for confidentiality.

§14 Liability & warranty

The Agency is liable only for damage caused by intent or gross negligence, as well as for breach of essential contractual obligations. In the latter case, liability is limited to the typical, foreseeable damage.

§15 Term & termination

The contract is concluded for the term agreed in the individual placement agreement. Termination requires written form. The right to extraordinary termination for good cause remains unaffected.

Right of termination in case of non-compliance

In the event of repeated or serious non-compliance with the GTC, the policy statement or the guiding principles by clients, nursing professionals or business partners, the Agency is entitled to terminate the contractual relationship extraordinarily and without notice. This applies in particular to violations of the Employer-Pays principle, transparency obligations, the prohibition of impermissible fees and the principles of fair and ethical recruitment.

15.1 Extraordinary right of termination in case of violations of § 10

In the event of violations of central principles of the "Faire Anwerbung Pflege Deutschland" quality seal, in particular of the Employer-Pays principle, the prohibition of deposits and subsequent payments, the prohibition of contractual penalties and the obligation to limit the economic risk for nursing professionals, the Agency or the respective other contracting party is entitled to terminate the contractual relationship extraordinarily and without notice.

15.2 Reservation of withdrawal pursuant to §§ 346 et seq. BGB

In addition to termination, the statutory right of withdrawal pursuant to §§ 346 et seq. BGB expressly remains unaffected. Withdrawal is permissible in particular where there are violations of the Employer-Pays principle, of the prohibition of impermissible fees or of other requirements under criterion 3.4 of the "Faire Anwerbung Pflege Deutschland" quality seal, or of other central components of the quality seal.

15.3 Protection of the nursing professional

A withdrawal or an extraordinary termination must not lead to impermissible financial disadvantages for the nursing professional; the Employer-Pays principle is preserved in every case.

§16 Final provisions

Should individual provisions of these GTC be or become invalid, the validity of the remaining provisions remains unaffected. Amendments and supplements to these GTC require written form.

As of April 2026